STANDARD OPERATING PROCEDURE			P-4100
	SARPY COUNTY SHERIFF'S OFFICE PAPILLION * NEBRASKA GREG LONDON SHERIFF	DATE ISSUED 06/01/06	DATE REVISED **06/04/24**	DATE REVIEWED 02/02/25
		APPROVED: *GREG LONDON*		
CHAPTER TITLE ROAD PATROL	RESOURCES RESOURCES N.R.S. 29-211			
SUBJECT PURSUITS	CROSS REFERENCE P-3200 PATROL UNITS P-3830 HIGH-RISK TRAFFIC STOPS P-4110 PURSUITS OUT OF SARPY COUNTY P-4130 TIRE DEFLATION DEVICES G-2110 INCIDENT REVIEW			

I. Purpose:

The purpose of this policy is to establish procedures regarding vehicle pursuits.

II. Policy:

The Sarpy County Sheriff's Office recognizes its obligation to apprehend law violators who flee from deputies. The Sheriff's Office however also recognizes vehicle pursuits may present an inherent danger to deputies, suspects, and citizens. Consequently, the Sarpy County Sheriff's Office shall regulate the manner in which vehicular pursuits are undertaken and performed.

Nebraska statutes grant a law enforcement officer authority to disregard traffic statutes when the officer is operating a motor vehicle with all emergency equipment and he or she is pursuing a law violator in a motorized vehicle. This authority, however, "shall not relieve the driver [i.e., law enforcement officer] from the duty to drive with due regard for the safety of all persons, nor shall such provisions protect such driver from the consequences of his or her reckless disregard for the safety of others" (§60-6,114 and §60-6,151).

III. Definitions:

A. Vehicle Pursuits: "An active attempt by a law enforcement officer [e.g., deputy sheriff] operating an authorized patrol unit utilizing all emergency equipment to apprehend one or more occupants of another motor vehicle, when the driver of the fleeing vehicle is or should be aware of such attempt and is resisting apprehension by maintaining or increasing his or her speed, ignoring the deputy, or attempting to elude the deputy while driving at speeds in excess of those reasonable and proper under the conditions" (§13-911).

B. Primary Unit: The patrol unit initiating a pursuit or the unit assuming control of the pursuit.

C. Secondary Unit(s): The patrol(s) unit involved as back-up to the primary unit. The secondary(s) unit shall follow the primary unit at a safe distance.

D. Emergency Equipment: During a pursuit, all emergency equipment (i.e., emergency lights and siren) must be used continuously.

IV. Procedure:

A. Justification:

1. Vehicle pursuits are only permitted in the following situations:

a) There is reasonable ground to believe the suspect has committed or is threatening to commit a violent felony crime (e.g., homicide, sexual assault, kidnapping, or robbery).

b) The deputy believes the actions of the suspect, if allowed to continue, would present an immediate and life-threatening danger to another citizen or to a law enforcement officer.

2. Vehicle pursuits are <u>not</u> permitted in the following situations:

a) The driver committed a traffic infraction, a misdemeanor, or a non-violent felony.

b) The driver has threatened self-harm, but does not present an immediate and life-threatening danger to another citizen or to a law enforcement officer.

c) A sergeant or a commander may override any provision in this Justification section if he or she can articulate a decisive reason.

B. In deciding to initiate and continue a vehicle pursuit, the deputy shall consider:

1. Seriousness of the Offense: See the “Justification” section above.

2. Outcome: The initiation and continuation of a pursuit must be based on the deputy’s belief that the need to immediately apprehend the suspect outweighs the risk to law enforcements officers, the public, and the suspect.

3. Suspect Identification: A pursuit shall not be initiated if:

a) The suspect has been identified; and,

b) Immediate apprehension is not necessary to protect the public or law enforcement officers; and,

c) Apprehension at a later time is feasible.

4. Road, Weather, and Environmental Conditions: Hazardous conditions increase the risk to the deputy, the public, and the suspect.

5. Vehicular and Pedestrian Traffic Volume: Increased vehicular and pedestrian traffic increases the risk to the deputy, the public, and the suspect.

6. Relative Performance Capabilities of the Vehicles: Deputies shall be cautious of driving too fast and dangerously when pursuing a vehicle with greater performance capabilities.

7. Occupants in the Cruiser: Deputies shall not engage in a pursuit if they have a ride-along, visitor, or arrestee unless the deputy's engagement is absolutely necessary, and the deputy has permission of a shift supervisor.

8. Occupants in the Suspect Vehicle: The safety of innocent passengers, such as children and hostages.

9. Time of Day: Pursuits occurring during the day, when there is a high level of business, school, and other activities, create a greater risk than pursuits late at night when activity levels are lower.

10. Location: Pursuits in neighborhoods or near schools create greater risk than those in sparsely populated areas. Also, pursuits into other counties may increase risk because the deputy may be unfamiliar with the area, the terrain and the traffic flow.

C. A Pursuit is Initiated When:

1. A deputy, in a marked patrol unit, attempts to take law enforcement action by activating his or her emergency equipment in an effort to stop a vehicle; and,

2. The deputy believes the driver of the vehicle is aware of the deputy's presence; and,

3. The driver of the vehicle attempts to avoid apprehension by taking action such as: Failing to stop, making sudden turns, violating traffic statutes,

maintaining or increasing speed, etc. (A deputy may be in pursuit even if the violator is not exceeding the speed limit).

D. Pursuit Notification:

1. The initiating deputy shall notify Communications that he or she is declaring a pursuit. The deputy must use the word “pursuit”.

2. Communications will clear the air for emergency traffic, announce the pursuit, and notify a shift supervisor.

3. If Communications announces a pursuit without specific direction from the initiating deputy, the deputy shall inform Communications whether or not a pursuit is being declared. (Communications doesn’t have the authority to declare a pursuit.)

4. The initiating deputy shall provide all of the following information to Communications:

a) The reason for the pursuit (nature of offense);

b) A description of the fleeing vehicle;

c) The license plate - state and number;

d) The description of the occupants;

e) The location and direction of the pursuit; and

f) The speeds involved.

5. Any deputy responding to the pursuit area shall inform Communications his or her location and response status.

6. The primary or secondary unit(s) involved in the pursuit shall be responsible for updating Communications with location and direction of travel, speeds involved, traffic conditions, and any change in the nature of the offense.

E. Primary Unit Responsibilities:

1. The deputy operating the primary unit shall follow the suspect vehicle, but shall not follow so closely that he or she becomes involved in a collision with the suspect vehicle.

2. The deputy operating the primary unit shall allow more distance between the unit and the suspect vehicle when the fleeing vehicle comes under air surveillance.

3. The deputy operating the primary unit shall be prepared to relinquish primary responsibilities if he or she is unfamiliar with the roads or if he or she has a vehicular malfunction.

F. Secondary Unit(s) Responsibilities:

1. Each deputy operating a secondary unit must immediately notify Communications once he or she joins the pursuit.

2. A deputy operating a secondary unit, if practical, shall take over radio communications as soon as possible.

3. A deputy operating a secondary unit shall be prepared to take over the primary position if the primary unit is unable to continue the pursuit and stay in close enough proximity to assist when the suspect vehicle stops.

4. Whenever a deputy becomes involved in a supporting function (e.g., deployment of tire deflation devices, traffic control, etc.,) or participates in the pursuit in any other manner, the deputy must notify Communications

G. Commander and Supervisor Responsibilities:

1. When made aware of a vehicular pursuit, a patrol commander (if available) and a shift supervisor shall monitor, coordinate and direct activities as needed to ensure that proper procedures are used.

2. Road patrol commanders and supervisors have the following discretion:

a) Allow more than two units to pursue during dire circumstances (e.g., multiple armed suspects).

b) Assign units to supporting functions (e.g., control traffic and deploy tire deflation devices).

c) Request assistance from another law enforcement agency, including air support from the Omaha Police Department or the Nebraska State Patrol.

3. A patrol commander or a shift supervisor shall terminate the pursuit if he or she believes the risks associated with continued pursuit are greater than the public safety benefit of making an immediate apprehension.

4. A patrol commander and/or a shift supervisor, if possible, shall respond to the location where the suspect vehicle has been stopped following a pursuit.

5. If any vehicle causes or becomes involved in a motor vehicle crash, the supervisor shall request the agency with jurisdiction complete a state accident report. The State Patrol shall be requested for collisions outside city limits. The Sheriff's Office shall only complete the state accident report if no other agency is available.

6. After the pursuit, a shift supervisor shall inspect patrol units involved in the pursuit. Any vehicles showing or suspected of having excessive wear or damage shall be taken out of service and a Vehicle Maintenance Form shall be completed (see P-3200 Patrol Unit).

H. Tactics:

1. Emergency Equipment: All patrol units shall activate all emergency equipment (emergency lights and siren) throughout the entire pursuit.

2. Audio/Video Recording Systems: All deputies involved in a pursuit, or responding urgent status to a pursuit, shall verify their video recording system and body worn camera (BWC) is activated and recording. This verification shall immediately occur once the emergency lights are activated. If the video recording system doesn't automatically activate, the deputy shall manually activate the recorder if possible. At no time shall the deputy manually turn off the video recording system or BWC until his or her involvement in the incident has ended.

3. Number of Units Involved: A pursuit shall not consist of more than two (2) law enforcement vehicles unless a patrol commander or a shift supervisor allows other units to actively pursue in dire circumstances (e.g., armed suspects). Only a patrol commander or a shift supervisor may assign other units to supporting functions (e.g., control traffic, deploy tire deflation devices, etc.).

4. Unmarked Patrol Units and Special Service Units: These patrol units shall only become involved in a pursuit when the criteria designated in P-3200 are met.

5. All Other Unmarked Vehicles: Deputies operating unmarked vehicles (e.g., Investigations vehicles or command vehicles) shall not engage in a pursuit. Deputies operating unmarked vehicles may observe a suspect vehicle and give direction of travel and description information but should at no time attempt to stop or overtake the suspect vehicle. Deputies operating unmarked vehicles must observe all traffic rules and regulations. For the purpose of this SOP, following a vehicle, making no attempt to stop the

vehicle, and obeying all traffic rules and regulations shall not constitute a pursuit.

6. Divided Roadways: During a pursuit, deputies shall not drive the wrong way on an interstate, a controlled access highway, or any other divided roadway.

7. Overtaking a Suspect Vehicle: Generally, deputies shall not attempt to overtake or pass a fleeing vehicle. Passing a fleeing vehicle places the deputy in a vulnerable position.

8. Firearms: Decisions to discharge firearms at or from a moving vehicle shall be governed by G-6100 Use of Force/Force Continuum.

9. Ramming: Generally, deputies shall be prohibited from using Sheriff's Office vehicles to ram a fleeing suspect's vehicle. However, if the deputy believes ramming the suspect vehicle is absolutely necessary to save the life of another person and all other methods to stop the vehicle have failed, the deputy may do so. If the vehicle pursued is occupied by persons other than the driver who are not known to have been involved in or suspected of a serious crime, there shall be no deliberate vehicle contact by the pursuing deputies.

10. Pursuits Outside Sarpy County: See P-4110 Pursuits Outside of Sarpy County.

11. Use of Roadblocks: Roadblocks are not authorized.

12. Use Tire Deflation Devices: See P-4130 Tire Deflation Devices.

I. Pursuit Initiated by Outside Agency:

1. A deputy may only become involved in the pursuit by another jurisdiction when:

a) The initiating agency requests assistance from the Sarpy County Sheriff's Office; and,

b) The deputy must receive permission from a patrol commander or a shift supervisor before pursuing the suspect vehicle; and,

c) The pursuit meets the criteria listed in this policy's "Justification" section; and,

d) If the pursuit originates from another state:

(1) The out-of-state officer must be in a pursuit of a felon.

(2) If the felon is stopped in Sarpy County, the suspect may be arrested by a Sarpy County deputy as a "Fugitive from Justice".

(3) The out-of-state officer shall return his jurisdiction to obtain the appropriate warrants.

2. The initiating agency shall be responsible for managing the pursuit. If the initiating agency is unable to perform this function, a patrol commander or a shift supervisor may allow the Sarpy County Sheriff's Office to manage the pursuit.

J. Terminating a Pursuit:

1. The deputies operating the primary and secondary units shall continually assess the reasons to initiate and continue the vehicle pursuit. The pursuit shall be terminated whenever the deputy reasonably believes the risks associated with continued pursuit are greater than the public safety benefit of making an immediate apprehension.

2. The pursuit shall be immediately discontinued if:

a) The suspect has been identified anytime during the pursuit; and,

b) Immediate apprehension is not necessary to protect the public or law enforcement officers; and,

c) Apprehension at a later time is feasible.

3. The pursuit shall be terminated whenever speeds become too excessive or significant dangers exist for the pursuing deputies, the public, and the suspect.

4. A pursuit shall be terminated when the suspect's location is no longer known.

5. Generally, any deputy involved in a traffic collision with an uninvolved motorist or pedestrian must stop engaging in the pursuit.

6. All units shall terminate the pursuit if ordered by a patrol commander or a shift supervisor.

7. When a pursuit is terminated, the deputies involved shall immediately turn off their emergency equipment. The deputies shall then either stop their patrol units, or turn in the opposite direction, or take part in an indisputable

act that clearly shows the pursuit has ended. Examples of indisputable acts are: returning to a speed at or below the posted speed limit, driving at a low speed on the shoulder, and blending into normal traffic flow.

8. The primary unit should immediately notify Communications that he or she has terminated the pursuit. The deputy shall provide the last known direction of travel for the run vehicle.

9. If a pursuit has been terminated, no other Sarpy County Sheriff's Office deputy may initiate or continue the pursuit of the suspect vehicle without the permission of a patrol commander or a shift supervisor.

10. A pursuit may be terminated by the primary unit at any time. No deputy shall be reprimanded or disciplined for terminating a pursuit.

K. Pursuit Resolution: Once the suspect vehicle stops, the deputies shall:

1. Attempt to conduct a felony traffic stop (see P-3830 High-Risk Traffic Stops).

2. Immediately advised Communications location of the stopped vehicle.

3. Foot Pursuits:

a) Deputies should use extreme caution when engaging in foot pursuits, specifically when chasing suspects around blind corners or into buildings. Deputies should avoid engaging in foot pursuits without sufficient back-up or when doing so places the deputy at unacceptable risk.

b) A deputy becoming involved in a foot pursuit shall immediately notify Communications of the location of the foot pursuit and direction of travel. The deputy should also provide a physical description of the suspect.

c) A deputy should remain with the suspect vehicle, if possible, especially if it is still occupied.

d) A deputy who has stopped a suspect after a foot pursuit shall hold the suspect at gun point until back-up units arrive to assist with handcuffing.

L. Pursuit Documentation:

1. The deputy operating the primary unit shall be responsible for completing an arrest report (if applicable) or an incident report detailing the actions of his or her actions during the pursuit.

2. All deputies who are involved in any manner whatsoever, directly, or indirectly (e.g., traffic control, tire deflation devices) in a pursuit shall complete a supplemental report using the original arrest or report number.

3. A shift supervisor shall review all completed reports regarding the pursuit and shall complete an Incident Review to determine if all Statutes and Sheriff's Office policies and procedures were followed (see G-2110 Incident Review). The supervisor shall then forward the Incident Review to his or her chain of command for review.

4. If the pursuit results in death or serious bodily injury, the Incident Review shall be completed by the Professional Standards Unit or the Investigations Division at the direction of the Chief Deputy or Sheriff.

5. The involved deputies shall be advised regarding the outcome of the supervisor's review.

M. Continued Planning and Training:

1. The Sarpy County Sheriff's Office shall provide initial and periodic training in emergency vehicle operations with a focus on pursuit policy and tactics. The training shall be documented.

2. Each deputy shall read the pursuit policies; P-4100 (Pursuits), P-4110 (Pursuits Out of Sarpy County), and P-4130 (Tire Deflation Devices), on an annual basis and sign a Policy Acknowledgement form to be maintained by the Policy Administrator.

3. The Road Patrol Division Commander or designee shall be responsible for completing a documented annual review and analysis of all pursuits to reveal possible patterns, trends, training needs, or needs for modification of the Sheriff's Office policies or procedures regarding pursuits. The analysis shall be approved by the Sheriff.